a period not to exceed 24 consecutive months, without the consent of the persons affected, except that numbers in excess of 1,000,000 may not be required to perform active duty involuntarily at any time unless authorized by the Congress.

(b) When the authority cited in paragraph (a) of this section is employed, subsection 673 (b), 70A Stat. requires that in the interest of fair treatment as between members in the Ready Reserve being considered for involuntary recall to duty, attention shall be given to the duration and nature of previous service with the objective of assuring such sharing of hazardous exposure as the national security and the military requirement will reasonably permit, to family responsibilities, and to employment found to be necessary to the maintenance of the national health, safety, or interest. At such time as the screening of the Ready Reserve under provisions of Part 53 of this chapter, 21 F. R. 3250, becomes current, the requirements of cited subsection 673 (b), 70A Stat. will be considered as having been satisfied. Meanwhile, the provisions of Department of Defense Directive Number 1235.5, subject: Involuntary Recall of Ready Reservists, subsection 233 (b) (2), Armed Forces Reserve Act of 1952 (Public Law 476, 82d Congress), dated September 1, 1953, will apply.

(c) In any expansion of the active Armed Forces of the United States which requires that units and members of the reserve components be ordered into the active military service of the United States, subsection 672 (c), 70A Stat. provides that, insofar as practicable, members of units organized and trained for the purpose of serving as such shall be ordered involuntarily to active duty only with their units, but does not prohibit the reassignment of personnel of such units after being ordered into the active military service of the United States. Policy governing application of this provision is contained in Department of Defense Directive Number 1235.6, subject: Integrity of Units, dated September 22, 1953.

§ 59.4 *Policy.* (a) The authority contained in subsection 673 (a), 70A Stat. to order units or members of the Ready Reserve involuntarily to active duty shall be exercised only on direction of the President.

(b) Where the nature of the emergency permits, the Secretary of Defense, with the advice of the Joint Chiefs of Staff, will determine the numbers and composition of forces to be ordered involuntarily to active duty from the Ready Reserve by each Service, subject to the conditions of paragraph (a) of this section within the 1,000,000 authorized by law or within whatever larger number may have been authorized by the Congress.

(c) Where the nature of the emergency precludes procedures contemplated in paragraph (b) of this section, the 1,000,000 members of the Ready Reserve authorized by law to be ordered involuntarily to active duty may be so ordered by authorities designated by the Secretaries concerned, subject to the conditions of paragraph (a) of this section, in numbers previously allocated to the military services by the Secretary of Defense.

(1) The Joint Chiefs of Staff shall be responsible for providing to the Secretary of Defense on a current basis the recommended numbers which each Service will be authorized to order involuntarily to active duty under such circumstances, based on appropriate war or mobilization plans.

(2) The Joint Chiefs of Staff shall periodically review the allocation made by the Secretary of Defense, for the purpose of recommending such changes as new conditions may dictate.

(d) Where the nature of the emergency indicates imminent attack upon the continental United States, those authorities having been designated by the Secretaries concerned may order to active duty, subject to the conditions of paragraph (a) of this section, those Ready Reserve forces previously determined by the Secretary of Defense, on the recommendation of the Joint Chiefs of Staff, as required for the immediate defense of the continental United States.

(e) The designation of individuals and units of the Ready Reserve to comprise the forces to be ordered involuntarily to active duty by each Service, within numbers determined by the Secretary of Defense in accordance with paragraphs (b), (c), or (d) of this section, shall be the responsibility of the Secretary of the military department concerned.

C. E. WILSON,
Secretary of Defense.

[F. R. Doc. 57-394; Filed, Jan. 19, 1957; 9:32 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1382]

[1825382]

NEVADA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 8578 OF OCTOBER 29, 1940, AS MODIFIED BY EXECUTIVE ORDER NO. 9019 OF JANUARY 12, 1942, WHICH WITHDREW LANDS FOR USE OF THE WAR DEPARTMENT AS AN AERIAL BOMBING AND GUNNERY RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8578 of October 29, 1940, as modified by Executive Order No. 9019 of January 12, 1942, reserving public lands in Nevada for use of the War Department as an aerial bombing and gunnery range, is hereby revoked so far as it affects the following-described lands:

a. Beginning at the Northwest corner of T. 1 S., R. 51 E., Mount Diablo Base and Meridian;

Thence East along the Mount Diablo Base line approximately 8.5 miles to the Southeast corner of T. 1 N., R. 51½ E.;

Thence North approximately 1 mile to the Southwest corner of T. 1 N., R. 52 E.;

Thence East along the Mount Diablo Base line approximately 15 miles to the Northeast corner of Section 4, T. 1 S., R. 54 E.;

Thence South along section lines approximately 12 miles to the Southeast corner of Section 33, T. 2 S., R. 54 E.;

Thence West along Township lines approximately 17½ miles to the Southeast corner of T. 2 S., R. 51 E.;

Thence North along the range line approximately 6 miles to the Northeast corner of T. 2 S., R. 51 E.;

Thence West along the Township line approximately 6 miles to the Southwest corner of T. 1 S., R. 51 E.;

Thence North along the range line approximately 5½ miles to the point of beginning.

The area described contains 155,645 acres.

b. Beginning at a point that has coordinates Northing, 911,554.32; Easting, 714,867.37; Latitude 37°15'07.268" N.; Longitude 115°55'42.268" W.; which is the northeast corner of the present Atomic Energy Commission Proving Ground as withdrawn by Public Land Order No. 805, thence

N. 0°32'47" W., 2 miles to the intersection of a line bearing west of the point for a corner of Tps. 7 and 8 S., Rgs. 55 and 56 E.

East, 10 miles along line for Tps. 7 and 8 S.

South, 6 miles to intersection of the 2nd Standard Parallel South and Rgs. 55 and 56 E.

West, 10 miles along said Parallel to east boundary of Public Land Order No. 805.

N. 0°32'47" W., 4 miles along said boundary to point of beginning.

The above described tract will embrace the following lands if and when surveyed:

MOUNT DIABLO MERIDIAN

T. 8 S., R. 54 E.,
Secs. 1 to 4, 9 to 16, 21 to 28, and 33 to 36 inclusive.
T. 8 S., R. 55 E.

The area described contains approximately 38,400 acres.

2. The lands described in paragraph 1 (b) of this order are included in an application for withdrawal (Nev. 043795) filed by the Atomic Energy Commission. With respect to such lands, applications under the public land laws will be suspended in accordance with 43 C. F. R. 295.10 until final action on the application for withdrawal has been taken.

3. The lands are grazing lands in Nye County, Nevada. Vegetation in a typical desert type with some scrub pinon and juniper at the higher elevations which changes to yucca, white burr sage, and annuals as the elevation decreases.

4. No application for the restored lands may be allowed under the homestead, desert-land, small tract or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the public lands released from withdrawal by this order, are hereby opened to filing of applications, selections, and locations in accordance with the following; the unsurveyed lands being opened to such applications, selections, and loca-

tions as are allowable on unsurveyed lands.

a. Applications and selections under the non-mineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications for surveyed lands under the Homestead, Desert Land, and Small Tract Laws and for unsurveyed lands under the Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m. on February 21, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on May 23, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs 5 (a) (1) and 5 (a) (2) above, and applications and offers under the Mineral Leasing Laws presented prior to 10:00 a. m. on May 23, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands described in paragraph 1 (a) will be open to location under the United States mining laws beginning at 10:00 a. m. on May 23, 1957.

6. Persons claiming veterans preference rights under paragraph 5 (a) (2) above, must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nevada.

HATFIELD CHILSON,
Assistant Secretary of the Interior.

JANUARY 16, 1957.

[F. R. Doc. 57–448; Filed, Jan. 22, 1957; 8:48 a. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 21—VOCATIONAL REHABILITATION AND EDUCATION

SUBPART B—VETERANS' READJUSTMENT ASSISTANCE ACT OF 1952

COMMENCEMENT; TIME LIMITATIONS

In § 21.2012, a new paragraph (d) is added as follows:

§ 21.2012 *Commencement; time limitations.* * * *

(d) *Special administrative consideration.* (1) Where a fully eligible veteran has timely filed a perfected application with the Veterans Administration and is shown to have been prevented from initiating the program applied for on or before the applicable delimiting date and it is clearly established that his failure to do so was the direct result of one of the following enumerated conditions—and of no other condition—it will be deemed that the provisions of paragraph (a) of this section as to timely initiation have been constructively met:

(i) There is of record a showing that his application was denied through clear and unmistakable error upon the part of the Veterans Administration and the veteran protested the denial within 60 days following the date of notice of denial.

(ii) The applicant relied upon the terms of an erroneous certificate for education and training issued on or prior to the applicable delimiting date which on its face clearly authorized commencement of training at a time following the applicable delimiting date and it is established that the veteran did commence his course within the period provided by the erroneous certificate.

(iii) There is of record a showing—as of the time of the asserted misinformation—that the veteran was erroneously informed by a responsible Veterans Administration employee that he could commence such program after the applicable delimiting date and the veteran did in fact commence his course within the period provided by the misinformation.

(iv) The veteran's application, proper in all respects, having been received in the Veterans Administration not later than the 10th workday immediately preceding the applicable delimiting date, and the veteran establishes by competent evidence that he was in fact prevented from commencing the program of education and training applied for on or before the applicable delimiting date solely because of failure upon the part of the Veterans Administration to issue a proper certificate for education and training on or before the third workday immediately preceding the applicable delimiting date and the veteran protested within 60 days following his delimiting date.

(2) Relief, as provided for in subparagraph (1) of this paragraph, will not be extended in any case where the veteran is unable to establish by competent and acceptable evidence—the burden of proof being upon the veteran—that, but for one of the conditions therein set out, his actual initiation of the program applied for would have been possible on or prior to his delimiting date. In no event will relief be extended as provided in subparagraph (1) (i) and (ii) of this paragraph unless the veteran has commenced or does commence active pursuit of the program applied for not later than the first date as of which students are admitted or 30 days after the date of the notification by the Veterans Administration of his eligibility, whichever is later.

(Sec. 261, 66 Stat. 663; 38 U. S. C. 971)

This regulation is effective January 23, 1957.

[SEAL] JOHN S. PATTERSON,
Deputy Administrator.

[F. R. Doc. 57–520; Filed, Jan. 22, 1957; 8:58 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 19]

CHEESES; PROCESSED CHEESES; CHEESE FOODS; CHEESE SPREADS; AND RELATED FOODS; DEFINITIONS AND STANDARDS OF IDENTITY

NOTICE OF PROPOSALS TO ADOPT DEFINITIONS AND STANDARDS OF IDENTITY FOR MOZZARELLA CHEESE, SCAMORZA CHEESE; PART-SKIM MOZZARELLA CHEESE, PART-SKIM SCAMORZA CHEESE

Notice is hereby given that a petition has been filed by the National Cheese Institute, Inc., 110 North Franklin Street, Chicago 6, Illinois, whose members include manufacturers and distributors of various cheeses, setting forth proposals to adopt definitions and standards of identity for mozzarella cheese, scamorza cheese; part-skim mozzarella cheese, part-skim scamorza cheese.

Pursuant to the authority of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055, as amended 70 Stat. 919; 21 U. S. C. 341, 371) and delegated to him by the Secretary of Health, Education, and Welfare (20 F. R. 1996, 21 F. R. 6581), the Commissioner of Food and Drugs invites all interested persons to present their views in writing regarding the proposals published below. Such views and comments should be submitted in quintuplicate, addressed to the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440,